

Forest Rights and Forest Conservation

Indian Forest Act 1927 (IFA, 1927)

The Indian Forest Act (FRA), 1927 was largely based on previous Indian Forest Acts implemented **under the British**. The most famous one was the Indian Forest Act of 1878.

FRA provides legal framework for protection and management of forest and duty leviable on Timber. It provides for procedure to be followed for declaring an area to be Reserve/Protected/Village Forest (**Degree of protection: Reserved forests > Protected forests > Village forests**)

- **The Indian Forest (Amendment) Act, 2017 amended the definition of tree to remove the word bamboos.** It means, bamboo growing in non-forest areas will be waived off the requirement of permission for its felling or transportation for economic use.

Reserve Forest (RF)

State government may constitute **any forest land or waste land as reserved forest** which is the property of Government and may sell the produce from these forests. Before issuing official notification state government needs to appoint a Forest Settlement Officer (has power of Civil Courts) to inquire and to provide settlements to persons belonging to that area.

- All activities are prohibited unless permitted in RFs.

Protected Forest (PF)

State government may constitute any forest land or waste land not included in Reserve Forest as Protected Forest.

Protected forests are of 2 kinds:

1. **Demarcated protected forests**
2. **Undemarcated protected forests**

- All activities are permitted unless prohibited in PFs.

Village Forest

State government **can assign to any village community the rights of government (to or over) any land** which has been constituted as reserved forest. **It may make rules for regulating the management of village forest**, prescribing conditions under which the community may be provided with timber or other forest produce or pasture.

Forest (Conservation) Act 1980 (FCA, 1980)

FCA was enacted to consolidate the **law related to forest; to control unchecked deforestation**, the transit of forest produces and the duty liveable on timber and other forest produce

Under the provisions of this Act, **prior approval of the Central Government is required** for diversion of forestlands for non-forest purposes. An Advisory Committee constituted under the Act advises GOI on these approvals.

The Act deals with the four categories of the forests, namely reserved forests, village forests, protected forests and private forests.

1992 Amendment: It provisioned for allowing **some non-forest activities in forests, without cutting trees or limited cutting** with prior approval of the Central Govt.

The responsibilities and powers of states

Under the Godavarman order, the **states are supposed to identify and notify forests**. The Forest Advisory Committee (FAC) of MoEF, the apex body that deliberates on granting permission to fell forests said, “criteria finalised by a state need not be subject to approval by MoEF”.

Forest Rights Act, 2006 (FRA 2006)

The Scheduled Tribes and Other Traditional Forest Dwellers (Recognition of Forest Rights) Act, 2006 provides for the restitution of deprived forest rights across India.

It provides for integrating conservation and **people's livelihood rights** and **strengthening the local self-governance**.

The FRA act identifies 4 types of rights

- **Title rights**: Gives right to **ownership to land farmed** forest dwellers subject to a maximum of 4 hectares.
- **Use rights**: Rights of the **dwellers extend to extracting Minor Forest Produce**, grazing areas, etc.
- **Relief And Development Rights: Rehabilitation in case of illegal eviction** or forced displacement and to basic amenities, subject to restrictions for forest protection.
- **Forest Management Rights**: **Right to protect, regenerate or conserve or manage any community forest resource** which they have been traditionally protecting and conserving for sustainable use

Salient Features

This Act is **applicable for Tribal and Other Traditional Forest Dwelling Communities**.

The nodal agency for the implementation is **Ministry of Tribal Affairs (MoTA)**.

The Act encompasses

- **Rights of Self-cultivation and Habitation** which are usually regarded as Individual rights;
- **Community Rights** as Grazing, Fishing and access to Water bodies in forests,
- **Habitat Rights for PVTGs**, Traditional Seasonal Resource access of Nomadic and Pastoral community, access to biodiversity,

- **community right to intellectual property and traditional knowledge, recognition of traditional customary rights** and right to protect, regenerate or conserve or manage any community forest resource for sustainable use.
- **It also provides rights to allocation of forest land** for developmental purposes to fulfil basic infrastructural needs of the community. In conjunction with the **Right to Fair Compensation and Transparency in Land Acquisition, Rehabilitation and Settlement Act, 2013** FRA protects the tribal population from eviction without rehabilitation and settlement.
- The Act further **enjoins upon the Gram Sabha and rights holders the responsibility of conservation and protection of bio-diversity**, wildlife, forests, adjoining catchment areas, water sources and other ecologically sensitive areas as well as to stop any destructive practices affecting these resources or cultural and natural heritage of the tribals.
- **The Gram Sabha is also a highly empowered body under the Act, enabling the tribal population to have a decisive say** in the determination of local policies and schemes impacting them.

Thus, **the Act empowers the forest dwellers to access and use the forest resources in the manner that they were traditionally accustomed, to protect, conserve and manage forests**, protect forest dwellers from unlawful evictions and also provides for basic development facilities for the community of forest dwellers to access facilities of education, health, nutrition, infrastructure etc.

Critical Wildlife Habitats (CWH)

The Critical Wildlife Habitats (CWH) have **been envisaged in Forest Rights Act, 2006**. CWH are defined **under the act as the “areas of national parks and sanctuaries** which are required to be kept as inviolate (human settlement and usage) for the purposes of wildlife conservation”. **FRA identifies MoEF as the agency to notify the guidelines related to Critical Wildlife Habitats (CWH).**

Biodiversity Act 2002

The Biological Diversity **Act 2002** was born out of India's attempt to realise the **objectives enshrined in the United Nations Convention on Biological Diversity (CBD) 1992** which recognizes the sovereign rights of states to use their own Biological Resources.

The Act aims at the conservation of biological resources and associated knowledge as well as facilitating access to them in a sustainable manner and through a just process for purposes of implementing the objects of **the Act it establishes the National Biodiversity Authority in Chennai.**

The act aims to check biopiracy, protect biological diversity and local growers through a three-tier structure by setting up of a **National Biodiversity Authority (NBA), State Biodiversity Boards (SBBs) and Biodiversity Management Committees (BMCs)** in local bodies.

There is provision for notifying National Heritage Sites important from standpoint of biodiversity by State Governments **in consultation with local self-government.**

Biological Diversity Amendment Bill 2021

- The amendments **seek to decriminalise certain provisions** and bring more foreign **investments in the chain of biological resources**, including research, patent and commercial utilisation, without compromising the national interest.
- The **amendments also give exemption to registered AYUSH medical Practitioners** from giving prior intimation to **State Biodiversity Board** for accessing biological resource from certain purposes.
- The **amendments are also aimed at promoting the cultivation of medicinal plants and ancient Indian medicine** by exempting Indians **cultivating medicinal plants** and **manufacturing products using codified traditional knowledge** from payment of Access and Benefit Sharing.

Wild Life (Protection) Act of 1972

WPA provides for:

- Defines wildlife related **terminologies like habitat, hunting, zoo, sanctuary, NP, Reserve Forest** etc.

- **Regulations for hunting wild animals and birds,**
- **Establishment of sanctuaries and national parks** — State Government by Notification (no need to pass any law) declare an area as a Sanctuary/NP.
- Regulations **for trade in wild animals**, animal products and trophies, &
- **Management of Zoo's**
- Judicially imposed penalties for violating the Act.

According to the act, the **State government may appoint Chief Wildlife Warden. Central government may appoint directors and assistant directors.**

The act has been amended 8 times so far 1982, 1986, 1991, 1993, 2002, 2006 and 2013, 2022.

WPA amendment 2006 act constituted these bodies

- **National Tiger Conservation Authority**
- **Wildlife Crime Control Bureau (WCCB)**

Wild Life (Protection) Amendment Bill, 2022

- Wild Life (Protection) Amendment Bill, 2022 **aims to modernize and strengthen India's** wildlife protection laws.
- The **Bill reduces the number of schedules to four which involves the removal of schedule for vermin species** and insertion of a new schedule for specimens under CITES. Wild Life (Protection) Amendment Bill, 2022 defines 'specimen' as any animal or plant (dead or alive).
- The Bill empowers the **central government to regulate or prohibit the import, trade, possession or proliferation of invasive alien species.**
- It empowers the Central government **to declare areas adjacent to National Parks and Wild Life Sanctuaries as Conservation Reserves** for protecting flora and fauna, and their habitat. (Under the WPA, 1972, this power was entrusted only to state governments.)
- It specifies that the **Chief Warden must act according to the management plans** for the sanctuary which are prepared as per guidelines of the Central government and as approved by the Chief Warden.

- It provides for any person to **voluntarily surrender any captive animals** or animal products to the Chief Wild Life Warden

Definitions Under wildlife protection act 1972

Wildlife Sanctuaries-

Wildlife Sanctuaries or wildlife refuges are areas where **endangered species are safeguarded from extinction in their natural habitat (home range)**. They are safe from hunting, predation, or competition. A sanctuary can be promoted to a National Park.

Certain rights of people living inside the sanctuary could be permitted. Grazing and firewood collection by tribals is allowed but strictly regulated. Settlements are not allowed (but in some wildlife sanctuaries, tribal settlements exist. Constant efforts are made to relocate them).

National Park

National parks, just like wildlife sanctuaries, **are declared through a notification by the respective state governments**. They are also granted protection under the Wild Life (Protection) Act of 1972. The significant difference between a sanctuary and a national park lies in the vesting of rights of people living inside.

- Unlike a Sanctuary, where **certain rights can be allowed**, in a National Park, no rights are permitted.
- **No livestock grazing shall also be permitted inside a National Park**, while in a sanctuary, the Chief Wildlife Warden may regulate, control, or prohibit it.

Biosphere Reserve

Biosphere reserves **are large areas of protected terrestrial, marine and coastal ecosystems**. UNESCO terms biosphere reserves as 'learning places for sustainable development' involving the conservation of wildlife, plant and animal resources and the traditional life of the tribals. A biosphere reserve in India may have one or more national parks or wildlife sanctuaries.

Biosphere Reserves are designated (recognised) under UNESCO's intergovernmental Man and the Biosphere (MAB) Programme after the national governments nominate them. They are internationally recognised by UNESCO's MAB but are administered under the sovereign jurisdiction of countries. **Designation of a site as a biosphere reserve does**
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not affect the legal status of the land, forests and regulations for natural resources, and their ownership remains unchanged.

Core Buffer Strategy

Core area

It comprises a **strictly protected ecosystem for conserving ecosystems, species and genetic variation**. In the **core or natural zone, human activity is not allowed**. A core zone, primarily a national park or sanctuary, is regulated mainly under the Wildlife (Protection) Act 1972.

Buffer Zone

Limited human activity is permitted. The zones are used for **scientific research, monitoring, training, limited recreation and education**.

Transition Area

Ecologically sustainable human settlements and economic activities (tourism, agriculture, forestry) are permitted in the transition area.

Reserved And Protected Forests

Reserved (reserve) forests and protected forests, **declared through a notification by the respective state governments**, are granted protection under the Indian Forest Act of 1927. Typically, **reserved forests are often upgraded to the status of wildlife sanctuaries, which in turn may be upgraded to national parks**, with each category receiving a higher degree of protection and government funding.

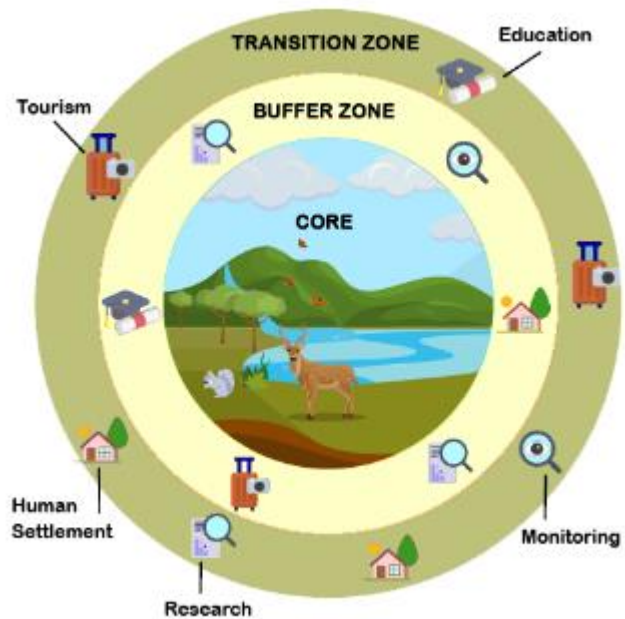


Figure 1 – Structure Of Biosphere Reserve

In terms of protection, National Parks > Wildlife Sanctuary > Reserved forests > Protected forests

Eco-Sensitive Zones (ESZs)

The National Environment Policy (2006) defined the Eco-Sensitive Zones “as areas/zones with identified environmental resources in order to protect the environment and the biological integrity of the **area outside the protected areas** and other such areas where an eco-system has been adversely affected due to anthropogenic and climatic factors, the **Ministry of Environment, Forest and Climate Change declare such areas as Eco-sensitive zones/ areas**. In other words, it is a type of designation of an area, which is rich in environmental resources and need special protection.

The National Wildlife Action Plan (2002–2016) of MoEF stipulated that state governments should declare land falling within 10 km of the boundaries of national parks and wildlife sanctuaries as eco-fragile zones or ESZs under the Environmental (Protection) Act, 1986.

The width of the ESZ and the type of regulation may vary from protected area to area. **The GOI can also notify areas beyond 10 km as ESZs** if they hold larger ecologically important “sensitive corridors”.

The **Supreme Court in June 2022** directed that every protected forest, national park, and wildlife sanctuary across the country should have a mandatory **eco-sensitive zone (ESZ) of a minimum of one km** starting from their demarcated boundaries.

Compensatory Afforestation Fund Management and Planning Authority (CAMPA)

CAMPA meant to promote afforestation and regeneration **activities as a way of compensating for forest land diverted to non-forest uses**. National CAMPA Advisory Council has been established as per orders of The Hon'ble Supreme.

Compensatory Afforestation: Whenever Forest land is diverted for **non-forest purposes such as mining or industry**, the user agency pays for planting forests over an **equal area of non-forest land**, or when such land is unavailable, **twice the area of degraded forest land**.

- **The centre passed the CAF Act in 2016, and the rules were notified in 2018.**
- **The National CAF (compensatory afforestation fund) under the Public Account of India** and the State CAF under the Public Account of each state were created.

- **90% of the CAF money will be given to the states, while the Centre will retain 10%.**

The funds can be used for

- Treatment of catchment areas,
- Assisted natural generation,
- Forest management,
- Wildlife protection and management,
- Relocation of villages from protected areas,
- Managing human-wildlife conflicts,
- Training and awareness generation,
- Supply of wood-saving devices and allied activities.

Joint Forest Management

The National Forest Policy of 1988 was the **vehicle through which the concept was first introduced by the Indian government.** The Forest Department and a village committee known as the Forest Protection Committee (FPC) typically engage in a JFM agreement, however, provisions of the agreements change from state to state and are called by different names in different Indian languages.

Villagers agree to protect forest resources from grazing, fire, and unlawful harvesting in return for receiving non-timber forest products and a portion of the proceeds from the sale of wood products.

What is Joint Forest Management?

- **Joint Forest Management (JFM) is a partnership that involves both local communities and forest agencies in the management of natural forests.**
- Rehabilitating degraded forestlands with the help of **Forest Protection Committees** is one of the program's main objectives.
- This co-**management initiative seeks to build partnerships between forest fringe communities and the Forest Department (FD)** based on shared respect and duties and responsibilities for the preservation and regeneration of the forest.

- JFM was established in accordance with the **National Forest Policy**, which stressed the value of involving local people.
- Subsequently, the **government issued the appropriate resolutions and directives to establish such institutions and strengthen** them further.
- The **majority of Indian states have accepted JFM** and issued resolutions

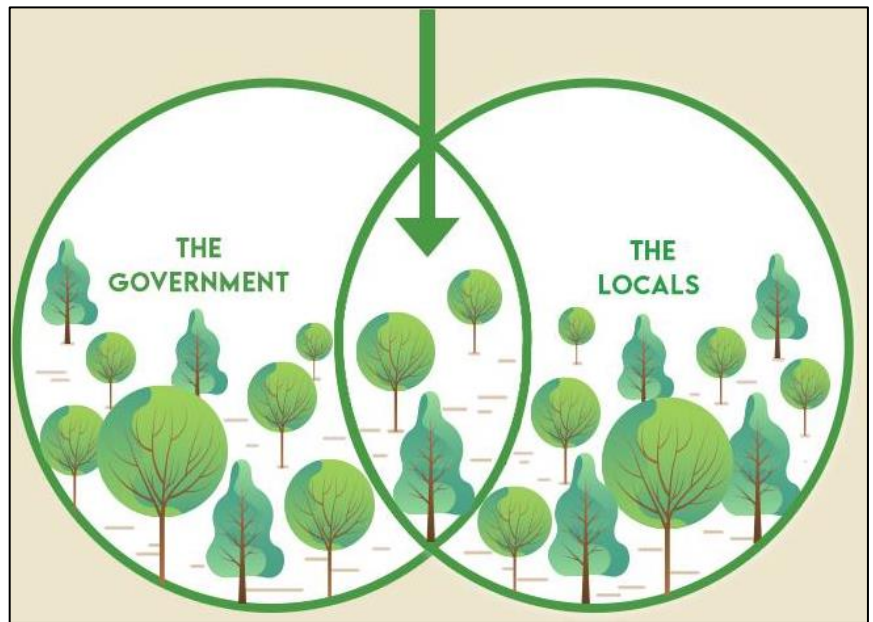


Figure 2 – Joint Forest Management

approving such partnerships in accordance with the established rules, despite the fact that each state has a different institutional setup.

Joint Forest Management – Examples

- **Gaddi & Gujjar Tribes:** The Gaddi and Gujjar tribes in the **Himalayan states control the grazing of cattle**, which helps to preserve biodiversity by preventing the development of wild grass.
- **Bishnoi Community:** The Bishnoi people in Rajasthan are crucial to ecological preservation through the **famous Chipko Movement**.
- **Maldhari Tribe:** The lion population **has increased due to cooperative conservation** efforts with the nomadic Maldhari tribe, which lives close to Gir National Park.

Joint Forest Management – Importance

- **Increase in Agricultural and Forest Produce:** Forest Committees are established to collaborate with locals and actively participate in boosting agricultural and forestry production as well as processing their output.
- **Employment Generation:** In order to discourage villagers from illegally chopping trees and encroaching on forests, employment options are provided in communities, such as sustainable tourism.

- **Reduction in Forest Pressure:** Other fundamental amenities are attempted to be offered in order to reduce pressure on the forest.
- **Preservation of Forest Rights:** Together with the Forest Rights Act, the Panchayat (Extension to Scheduled Areas) Act of 1996 significantly contributes to ensuring the rights of forest residents.
- **Maintenance of Gender Balance:** The Joint Forest Management Committee (JFMC) maintains gender balance with a dedicated women's subcommittee.
- **Implementation of MGNREGA:** The JFMC implements the Mahatma Gandhi National Rural Employment Guarantee program in peripheral forest areas and offers training in animal husbandry, poultry farming, dairy development, and managing small forestry firms.
- **Non-Wood Forest Products:** JFM also values non-wood forest products (NWFP).
- **Importance in the Way of Life:** NWFP is essential to the way of life in communities that depend on forests. They satisfy fundamental needs, offer profitable employment during hard times, and enhance agricultural and wage labour wages.
- **Enhancement in Rural Health:** JFM's collection of medicinal plants plays a significant role in rural health.

Joint Forest Management – Challenges

- **Nature of Passed Laws:** Laws like the Forest Rights Act (FRA), 2006, and the Panchayat Extension to Scheduled Areas (PESA) Act, 1996, have been passed, granting indigenous peoples and people who live in forests management rights over forest resources.
- **Need for Funds:** Communities seek the considerable funds that the forest departments owe them as part of the scheme.
- **Expensive Nature:** JFM program implementation is expensive. For instance, **afforestation costs around Rs 20,000 per acre.**
- **Lack of Legal Rights:** Forest Protection Committees (FPC) lack legal standing as well as financial and executive authority.
- **Discretionary Power:** In several States, the Forest Department has the discretionary authority to dissolve FPCs.
- **Ineffective Plan & Management:** Ineffective management and micro-plan design is another major challenge faced by Joint Forest Management.
- **Participation of Women:** Despite having formal representation on management committees, women don't participate.

- **Local Conflicts:** Conflicts between and within communities hinder the operation of the Forest Protection Committees (FPC).

Ecological Impact of Joint Forest Management

- **Recruitment was significant in four states, namely Andhra Pradesh, Madhya Pradesh, Orissa, and West Bengal, accounting for 17% of the regenerating individuals.**
- **Over 10% of the open forest in Karnataka has been brought under JFM, and much wasteland could still be brought under JFM.**
- JFM plantations are **dominated by exotic firewood species** and are deficient in timber and nontimber species, resulting in lower biodiversity.
- The **rate of biomass growth in JFM forests** was higher than the national average.
- Other JFM support activities revealed that various biomass conservation programs were launched, with a **large number of energy-saving and alternative energy devices installed**

Conclusion

JFM micro-planning must guarantee that **people are involved in the management of the forest**. It should make it easier to understand the needs of the participating community and the potential for resource or region development. **In cooperation with the participant, it must organize, forecast, and control the benefits flow.** On the basis of site conditions and financial constraints, it should identify and emphasize the local resources and establish priorities for resource development. **JFM creates a win-win situation for both forest departments and the local populations in terms of better access to minor forest products from these regenerated forests.**

Indian Forest Survey Report 2021

Tree cover refers to the **total area of land that is covered by trees**, regardless of whether or not the trees are part of a forest ecosystem.

Forest cover, on the other hand, **refers specifically to the area of land that is covered by a forest ecosystem**, which is defined as an area with a **tree canopy density of more**

than 10% and an area of more than 1 hectares. So, all forest cover is tree cover, but not all tree cover is forest cover.

What is the status of forest and tree cover in India?

FSI – The Forest Survey of India (FSI) started **publishing its biennial State of Forest reports in 1987, however, it has been mapping India's forest cover since the early 1980s.**

Every two years, Forest Survey of India (FSI) undertakes assessment of country's forest resources, the results of which are presented as the 'India State of Forest Report (ISFR)'.

The ISFR-2021 **provides information on forest cover, tree cover, mangrove cover, growing stock, carbon stock in India's forests, forest fire monitoring, forest cover in tiger reserve areas, above ground estimates of biomass using SAR data & climate change hotspots in Indian forests.**

Dense and Open Forests – All land areas with **tree canopy density of 40%** and above are considered dense forests and those between 10-40% are open forests.

Very Dense Forests – Since 2003, a new category, very dense forest, was assigned to land with 70% or more canopy density.

Isolated Trees – Since 2001, **small patches of trees less than 1 hectare** and not counted as forest.

Major Findings

The **total forest and tree cover of the country is 80.9 million hectare** which is 24.62 percent of the geographical area of the country.

As compared to the assessment of 2019, there **is an increase of 2,261 sq km** in the total forest and tree cover of the country. Out of this, **the increase in the forest cover has been observed as 1,540 sq km and that in tree cover is 721 sq km.**

- The Total Forest cover is 7,13,789 sq km **which is 21.71% of the geographical area** of the country.
- The **Tree cover is 2.91% of the geographical area** of the country.

- **Increase in forest cover has been observed** in open forest **followed by very dense forest. Top three states showing increase in forest cover are Andhra Pradesh followed by Telangana and Odisha.**
- **Area-wise Madhya Pradesh has the largest forest** cover in the country followed by Arunachal Pradesh, Chhattisgarh, Odisha and Maharashtra.
- In terms of forest cover as percentage of total geographical area, **the top five States are Mizoram (84.53%), Arunachal Pradesh, Meghalaya, Manipur and Nagaland.**
- 17 states/UT's have above 33 percent of the geographical area under forest cover. Out of these states and UT's, five states/UTs namely **Lakshadweep, Mizoram, Andaman & Nicobar Islands, Arunachal Pradesh and Meghalaya have more than 75 percent forest** cover while 12 states/UTs have forest cover between 33 percent to 75 percent.
- **Total mangrove cover in the country is 4,992 sq km.** An increase of 17 sq Km in mangrove cover has been observed as compared to the previous assessment of 2019. Top three states showing mangrove cover increase are Odisha (8 sq km) followed by Maharashtra (4 sq km) and Karnataka (3 sq km).
- **Total carbon stock in country's forest is estimated to be 7,204 million tonnes and there an increase of 79.4 million tonnes** in the carbon stock of country as compared to the last assessment of 2019. The annual increase in the carbon stock is 39.7 million tonnes.
- Total **Fire prone forest area is 35.47 per cent** of the forest cover as per current assessment.
- There **are 52 tiger reserves, spread across eighteen major states** of the country.
- **Delhi has the largest forest cover followed by Mumbai and Bengaluru.** Hyderabad has shown maximum decadal increase in Forest cover followed by Delhi.
- **India is at 10th rank in the world** in terms of forest area.

